

WIRELESS NETWORK FACILITY COLOCATION

The purpose of this regulation is to establish the process by which Policy 6350 Wireless Network Facility Colocation will be administered in accordance with the Telecommunications Master License Agreement (TMLA) with a vendor. The TMLA, Site Licenses, and Carrier Sublicense shall explicitly include the terms of both Policy 6350 and this Regulation 6350 which shall take priority over any conflicting terms of the TMLA, any Site License, and any Carrier Sublicense.

A. Process. Subsections 1-9 below outline the steps and process by which approval for the installation of a Wireless Network Facility on LCPS property is managed.

1. Proposal of Site. The vendor shall, at its sole cost and expense, prepare and deliver to LCPS staff a Site Assessment with regard to the proposed Site(s). The Site Assessment(s) shall include a conceptual design of the mobile or land-based network facility and proposed location as well as a Site Plan.

2. LCPS Review. LCPS and the vendor shall meet to discuss each proposed Site(s) for which the vendor submitted a Site Assessment. After the parties meet and prior to completing its review, LCPS staff may request additional information.

3. Public Briefing. A public briefing will be convened by LCPS staff to identify the proposed Site(s) and seek community input. Notice of the public briefing will be posted on the LCPS webpage and emailed to parents of students attending the affected Site. Notice will be provided to abutting property and property immediately across the street or road from the proposed property.

4. Finance and Operations Committee. The proposed Site Assessment(s) will be presented by LCPS staff to the Finance and Operations Sub-Committee for consideration of a recommendation to the School Board regarding the acceptability of each individual Site as specified in the Site Assessment and subject to any and all land use approvals and appeal periods.

5. Public Hearing and School Board Information. LCPS staff will present the proposed Site Assessments(s) to the School Board as an information item. A Public Hearing shall be held at the same meeting preceding the information item. Notice of the Public Hearing will be posted on the LCPS webpage and emailed to parents of students attending the affected Site. Notice will be provided to abutting property and property immediately across the street or road from the proposed property. The Board may give such notice by regular, first-class, U.S. Mail.

6. Vendor Responsibility. School Board action regarding the acceptability of each of the proposed Site Assessment(s) is contingent upon the vendor securing all governmental approvals, including final land use approvals.

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7. School Board Action. School Board take action regarding the acceptability of each individual Site as specified in the Site Assessment(s) and subject to any and all land use approvals and appeal periods.

8. Site License Agreement. Upon the Vendor securing the necessary land use approvals and expiration of the related appeals periods the Superintendent or his designee shall be authorized to execute the individual Site License Agreement and any and all related instruments necessary for the development of the Approved Site(s).

9. Site development is permitted once a site is approved as outlined in this regulation.

B. Conditions and Requirements.

1. All vendors, bidders, and carriers shall agree to abide by and follow all School Board policies, rules, regulations, and internal protocols, including Section 22.1-296.1 of the Code of Virginia regarding employees with certain criminal convictions.

2. No vendor, bidder, or carrier shall in any way use School Board or school logos without the prior written consent of the Superintendent or his designee. At no time shall any vendor, bidder, or carrier explicitly or implicitly convey school or School Board sponsorship of the vendor, bidder, or carrier.

3. Vendors awarded licenses or sublicenses to place wireless facilities shall bear the cost of an annual outside financial audit of all records to be done for the benefit of the School Board in addition to any other payments to be made to the School Board.

4. No vendor or carrier shall be permitted to place any advertising on wireless facilities.

5. All wireless facilities shall provide, at no cost, a minimum of one platform or location on the facility for the exclusive use of LCPS. The highest Center of Radiation on each wireless facility shall be reserved for the use of LCPS or any other governmental entity designated by LCPS.

6. All improvements shall comply with any and all current Town and Loudoun County Zoning Ordinance.

7. The Site License Agreement will specify the exact location of tower and its base facility, including design plans and specifications. Fencing and appropriate landscaping, at no cost to the School Board, shall be required as determined by the School Board in its sole subjective discretion.

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8. LCPS shall have the right to temporarily remove any equipment or facilities from the site if necessary for the school to perform maintenance of the school's own property or facilities.

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